

COMMISSION DECISION (EU) 2015/547

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COMMISSION DECISION (EU) 2015/547

of 1 April 2015

on the safety requirements to be met by European standards for alcohol-powered flueless fireplaces pursuant to Directive 2001/95/EC of the European Parliament and of the Council on general product safety

(Text with EEA relevance)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Directive 2001/95/EC of the European Parliament and of the Council of 3 December 2001 on general product safety (1), and in particular Article 4(1)(a) thereof,

Whereas:

(1)

Products which conform to national standards transposing European standards drawn up under Directive 2001/95/EC and referenced in the Official Journal of the European Union benefit from a presumption of safety.

(2)

European standards are to be drawn up on the basis of requirements intended to ensure that products which conform to them satisfy the general safety requirement set out in Article 3 of Directive 2001/95/EC.

(3)

No European standards exist for alcohol-powered flueless fireplaces, although according to the existing studies various hazards are associated with them (2) (3). Many models are designed with detachable fuel containers which are placed in a chamber within the fireplace, and fuel may therefore spill within the chamber. It may then evaporate, increase in temperature and deflagrate, causing sudden combustion. The rapid spread of flames puts the user at risk of burns and may ignite surrounding materials. Refuelling an ethanol fireplace while it is still hot is very dangerous, as ethanol may vaporise quickly, ignite and cause an explosion. Free-standing floor models could be placed too close to combustible materials and may consequently cause fires. Faulty installation of wall-mounted fireplaces may cause overheating, which may in turn lead to the fireplace becoming detached from the wall while still in operation (4). There is also a risk that free-standing floor models may overturn. Should this occur, the burning fuel would spill out of the fireplace, spreading fire into the surrounding room area.

(4)

The combustion of fuels in alcohol-powered flueless fireplaces may put human health at risk. If incomplete combustion occurs, carbon monoxide, a toxic compound, is formed. If complete combustion occurs, carbon dioxide is formed, which is hazardous to health and can lead to hyperventilation.

(5)

Furthermore, the installation of flueless fireplaces does not require inspection by the relevant authorities.

(6)

It is therefore appropriate to determine the requirements needed to ensure that alcohol-powered flueless fireplaces satisfy the general safety requirement set out in Article 3 of Directive 2001/95/EC.

(7)

The measures provided for in this Decision are in accordance with the opinion of the Committee on general product safety,

HAS ADOPTED THIS DECISION:

Article 1

Definition

For the purposes of this Decision, the following definition shall apply:

‘Alcohol-powered flueless fireplace’ means an appliance which:

(a)

is designed to produce a decorative flame by burning alcohol, but is unsuitable for primary heating purposes; and

(b)

is not designed to be connected to a flue.

Article 2

Scope

This Decision shall apply to all domestic flueless fireplaces and their accessories where these are intended for use indoors. Fireplaces with a fuel chamber volume below 0,2 l specifically designed for cooking food or keeping it warm do not fall within the scope of this Decision.

Article 3

Safety requirements

The specific safety requirements for alcohol-powered flueless fireplaces referred to in Article 1 to be met by European standards pursuant to Article 4 of Directive 2001/95/EC are set out in the Annex to this Decision.

Article 4

Entry into force

This Decision shall enter into force on the twentieth day following that of its publication in the Official Journal of the European Union.

Done at Brussels, 1 April 2015.